

Court No. - 3

Case :- WRIT - C No. - 7737 of 2013

Petitioner :- Ranveer Singh

Respondent :- Powergrid Corporation Of India Ltd. And Others

Petitioner Counsel :- M.K. Gupta

Respondent Counsel :- C.S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard Sri M.K. Gupta, learned counsel appearing for the petitioner and the learned counsel for the State.

The grievance of the petitioner is that the respondent No. 1 is erecting transmission line through/over Khasara Plot No. 481 measuring 0.4390 hectare and Khasara Plot No. 483 measuring 1.3630 hectares, admeasuring 1.8020 hectare of Village Validpur, Pragana Daurala, Tahsil Sardhana, District Meerut belonging to the petitioners and for erecting such transmission line, neither the consent of the petitioner has been taken nor permission of the respondent No. 2 has been taken.

After hearing the learned counsel for the petitioner and the learned counsel appearing for the State, we are of the view that if the petitioner has not given consent for erection of the transmission line, the matter should be examined by the respondent No. 2 as to whether the transmission line is required to be drawn over/through the land belonging to the petitioners.

We accordingly, dispose of the writ application directing the respondent No. 2 to look into the grievance of the petitioners and take immediate steps in accordance with Electricity Supply Code, 2005. Such a decision be taken within four weeks from the date of communication of this order.

Order Date :- 12.2.2013

Arun K. Singh